

**SUPREME COURT OF THE STATE OF NEW YORK
NEW YORK COUNTY**

Dara Mohan,

Plaintiff,

-against-

The City of New York, New York City Police
Department ("NYPD") Detective Christophe
Ascazubi (Shield # 00365), and NYPD
Members/Officers John and Jane Does 1-6, in
their individual capacities,

Defendants.

Index No.

SUMMONS

Plaintiff designates New York County as
the County of Venue based on the location
where the claim arose.

TO THE ABOVE-NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED and required to serve upon plaintiff's attorney, at his address
stated below, an answer to the attached complaint.

If this summons was personally served upon you in the State of New York, the answer must be
served within 20 days after such service of the summons, excluding the date of service.

If the summons was not personally delivered to you within the State of New York, the answer
must be served within 30 days after service of the summons is complete as provided by law.

If you do not serve an answer to the attached complaint within the applicable time limitation, a
judgment may be entered against you, by plaintiff, for the relief demanded in the complaint, without
further notice to you.

The action will be heard in the Supreme Court of the State of New York, in and for the County of
New York. This action is brought in New York County because it is the place in which the claim arose.

Dated: July 27, 2022
New York, New York

Respectfully submitted,

BELDOCK LEVINE & HOFFMAN LLP
99 Park Avenue, PH/26th Floor
New York, New York 10016
(212) 490-0400



By: _____
David B. Rankin

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**COMPLAINT AND DEMAND FOR
JURY TRIAL**

Pursuant to Article 9 of the Civil Practice Law and Rules (“CPLR”), Plaintiff Dara Mohan, by her attorneys Beldock Levine & Hoffman, for her complaint against Defendants alleges as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action brought to vindicate Plaintiff’s rights under the New York State Constitution and laws of New York State and New York City.

2. Members of the New York City Police Department (“NYPD”) violated Plaintiff’s rights when they unconstitutionally and without any legal basis seized, detained, arrested, and searched her. By reason of Defendants’ actions, including Defendants’ arrest and imprisonment of Plaintiff without probable cause and subjecting Plaintiff to unreasonable and unlawful searches and seizures, Plaintiff was deprived of her constitutional, statutory, and common law rights.

3. The City of New York (“City”) and its agency, the New York City Police Department (“NYPD”) maintain a database, the Domain Awareness System, for NYPD officers

to search when they have police encounters with individuals to see if orders of protection exist. This database contains inaccurate, outdated information. While orders of protection are often deemed no longer valid, not in place, or modified by courts, the City and NYPD does not update its database with these changes in a timely manner. As a result, people are unlawfully arrested and detained, even when those who are arrested inform NYPD officers that an order of protection is no longer in place or show paperwork from courts to prove that the orders of protection are not valid.

4. The City and NYPD are aware of the inaccuracies within their database, as numerous individuals are arrested, and NYPD officers later find that the order of protection is no longer in effect. The City has failed to fix its faulty database to prevent unlawful arrests and remains deliberately indifferent to the errors in its database, despite knowing that its acts and omissions will result in numerous unlawful arrests and detention.

JURISDICTION AND VENUE

5. Venue is properly laid in the Supreme Court of the State of New York, County of New York, as the torts originated in the County of New York, and Defendants regularly and substantially conduct business in New York County. CPLR § 503(a).

6. Pursuant to New York State General Municipal Law § 50-e, Plaintiff filed a timely Notice of Claim with the New York City Comptroller, and a 50-h hearing was conducted.

JURY TRIAL DEMAND

7. Plaintiff demands a trial by jury in this action on each and every one of her claims.

THE PARTIES

8. Plaintiff Dara Mohan is a resident of New York State and New York County.

9. The City is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department that acts as its agent in the area of law enforcement and for which it is ultimately responsible.

10. The City assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the NYPD.

11. The City is liable for the actions of its employees, including all members of the NYPD, under the doctrine of respondeat superior.

12. NYPD Detective Christophe Ascazubi (Shield # 00365) and NYPD Members/Officers John and Jane Does 1–6¹ (referred to collectively as the “Individual Defendants”) are and were at all times relevant herein, officers, employees, and agents of the NYPD.

13. The true names and shield numbers of Defendants NYPD Members/Officers John and Jane Does 1–6 are not currently known to the Plaintiff. However, they are employees or agents of the NYPD. Accordingly, they are entitled to representation in the action by the New York City Law Department (“Law Department”) upon their request, pursuant to New York State General Municipal Law § 50-k. The Law Department, then, is hereby put on notice (a) that Plaintiff intends to name said officers as defendants in an amended pleading once the true names and shield numbers of said defendants become known to Plaintiff and (b) that the Law Department should immediately begin preparing their defense in the action.

14. Individual Defendants are sued in their individual capacities.

¹ By identifying defendants as “John Doe” or “Jane Doe,” Plaintiff is making no representations as to the gender of said defendants.

15. At all times relevant herein, the Individual Defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees, and officers of the NYPD, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the NYPD at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the NYPD and incidental to the lawful pursuit of their duties as officers, employees and agents of the NYPD.

16. Individual Defendants' acts hereafter complained of were carried out intentionally, recklessly, with malice, and in gross disregard of Plaintiff's rights.

17. At all relevant times, the Individual Defendants were engaged in a joint venture, assisting each other in performing the various actions described herein and lending their physical presence and support and the authority of their offices to one another.

STATEMENT OF FACTS

18. Dara Mohan's neighbor obtained a Temporary Order of Protection against her.

19. The Temporary Order of Protection was set to expire on May 9, 2021, but the criminal court ordered it null and void, sealed it, and issued a certificate of disposition in Ms. Mohan's favor on April 12, 2021.

20. On April 27, 2021, Ms. Mohan was in the hallway of her apartment building when the neighbors assaulted her. She was punched, kicked, and bitten.

21. Ms. Mohan went to the NYPD's 30th Precinct and showed NYPD officers her bruises and wounds.

22. NYPD officers issued an arrest warrant for the neighbors and instructed Ms. Mohan to call the Precinct whenever she saw the neighbors outside of the apartment.

23. The next day, April 28, 2021, Ms. Mohan called the 30th Precinct upon seeing her neighbors around the building and outside of their apartment.

24. Two NYPD members/officers (“John Doe 1” and “John Doe 2”) arrived at the apartment building.

25. John Doe 1 and John Doe 2 claimed that in the database, the Temporary Order of Protection still showed as valid, despite Ms. Mohan showing John Doe 1 and John Doe 2 court documentation that the Temporary Order of Protection was null and void.

26. Ms. Mohan’s Neighborhood Defender Services (“NDS”) Harlem attorney spoke to John Doe 1 and John Doe 2 over the phone to inform them that the Temporary Order of Protection was no longer valid and Ms. Mohan could not lawfully be arrested based on a violation of the Temporary Order of Protection.

27. Despite Ms. Mohan being the victim of an assault, John Doe 1 and John Doe 2 arrested Ms. Mohan, as they claimed to find the Temporary Order of Protection, which was no longer valid, in the NYPD database on their department-issued smartphones.

28. Individual Defendants then placed Ms. Mohan in overly tight handcuffs, arrested her, and transported her to the 30th Precinct.

29. During the transport, Ms. Mohan alerted officers that the handcuffs were overly tight, but they did nothing.

30. At the Precinct, Ms. Mohan was handcuffed to a pole while NYPD members processed her arrest.

31. Ms. Mohan was later placed in a holding cell with no face mask.

32. Ms. Mohan was detained at the 30th Precinct for hours.

33. Ms. Mohan repeatedly asked for water, but NYPD member/officer (“John Doe 3”) refused to give her water.

34. Ms. Mohan was finally released from detention at the 30th Precinct after the District Attorney’s office confirmed that the Temporary Order of Protection was no longer valid.

35. As Ms. Mohan could not receive charges on a violation of the Temporary Order of Protection, Individual Defendants instead released Ms. Mohan with a desk appearance ticket for alleged misdemeanor assault and harassment.

36. Detective Christophe Ascazubi (Shield #00365) then initiated a criminal court complaint against Ms. Mohan for alleged misdemeanor assault and harassment.

37. The desk appearance ticket and complaint were later dismissed.

38. Defendants’ actions were unlawful and violated Ms. Mohan’s constitutional, statutory, and common law rights.

39. As a result of Defendants’ acts and omissions, Ms. Mohan experienced deprivation of liberty, physical injury, pain, suffering, humiliation, and extreme mental and emotional anguish.

NYPD Refuses to Ensure Its Database Contains Accurate Information on Orders of Protection.

40. The NYPD maintains its own NYPD database, the Domain Awareness System (“DAS”) for NYPD officers to search individual names in the DAS search function.

41. The DAS is available to NYPD officers on department-issues smartphones—which NYPD officers keep on their person—on tablets, and on computers.

42. NYPD officers use the search function of the DAS for records searches to find orders of protection.

43. Orders of protection are frequently modified by the courts. For instance, a court may vacate an order of protection if deemed no longer necessary. If a charge is dismissed, an order of protection is vacated and immediately null and void.

44. The City and NYPD do not ensure that their database, the DAS, contains up-to-date, accurate information.

45. As a result, orders of protection that have been vacated or otherwise modified often show up as valid and in place in the database.

46. NYPD officers then conduct arrests and detain individuals for alleged violations of orders of protection which have been vacated by the court, as the NYPD instructs officers to make arrests based on information in its own database.

47. When individuals inform NYPD officers that orders of protection against them are no longer in place, NYPD officers disregard this information and arrest individuals anyway, as they rely on their database.

48. For years, the City has allowed individuals to be unlawfully arrested and detained for alleged violations of orders of protection that are no longer in effect rather than act to ensure its database contains accurate, up-to-date information.

49. Despite being aware of the inaccuracies, the City has not provided alternative means of ensuring that orders of protection that show up in the database available to NYPD officers are confirmed as valid.

50. As Defendant refuses to ensure its database contains accurate information, numerous individuals have been arrested after an Order of Protection was no longer valid or had been modified.

FIRST CAUSE OF ACTION
False Arrest/False Imprisonment

51. Plaintiff repeats and realleges each and every allegation contained in the paragraphs above as if fully set forth herein.

52. Defendants arrested and detained Plaintiff in the absence of probable cause.

53. That at all times hereinafter mentioned, said searches, arrests, confinements, and restraints of liberty was not otherwise privileged.

54. Plaintiff was detained for excessive and unreasonably long periods of time.

55. Plaintiff was conscious of the confinement and did not consent to such confinement.

56. Defendants, despite knowing that probable cause did not exist to arrest Plaintiff, intentionally, recklessly, and with malice caused Plaintiff to arrested.

57. As a direct and proximate result of the false arrest and false imprisonment, Plaintiff was damaged or otherwise injured, unlawfully detained, and suffered emotional distress, and/or cost and expenses as a result of the willful, wrongful, and malicious conduct.

58. As a result of the foregoing, Plaintiff was deprived of her liberty, suffered specific and serious bodily injury, pain and suffering, humiliation, psychological and emotional injury, costs and expenses, and was otherwise damaged and injured.

SECOND CAUSE OF ACTION
Malicious Prosecution

59. Plaintiff repeats and realleges each and every allegation contained in the paragraphs above as if set forth herein.

60. Defendants, despite knowing that probable cause did not exist to arrest and initiate the prosecution against Plaintiff, intentionally, recklessly, and with malice caused Plaintiff to arrested and initiated a malicious prosecution against her.

61. As a result of the foregoing, Plaintiff was deprived of her liberty, suffered specific and serious bodily injury, pain and suffering, humiliation, psychological and emotional injury, costs and expenses, and was otherwise damaged and injured.

THIRD CAUSE OF ACTION

Negligence

62. Plaintiff repeats and realleges each and every allegation contained in the paragraphs above as if set forth herein.

63. In creating an NYPD database available to NYPD officers on desktops, tablets, and smartphones, the Defendant City of New York undertook a duty of care to Plaintiff to ensure that accurate, up-to-date information was contained in the databases that officers use to effectuate arrests and detentions for violations of orders of protection.

64. Defendant City of New York has failed in its duty to ensure the NYPD database is accurate, causing Plaintiff to be arrested and detained for violations of orders of protection that are no longer in place or not valid.

65. The City's violation of their duty was a direct and proximate cause and a substantial factor in bringing about damages to Plaintiff as outlined above, and, as a result, Defendant City of New York is liable to Plaintiff.

66. Defendant City of New York and Individual Defendants jointly and severally, negligently caused injuries, emotional distress, and damage to Plaintiff. The acts and conduct of the Defendants were the direct and proximate cause of injury and damage to Plaintiff and violated his statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

67. As a result of the foregoing, Plaintiff was deprived of her liberty, suffered specific and serious bodily injury, pain and suffering, humiliation, psychological and emotional injury, costs and expenses, and was otherwise damaged and injured.

FOURTH CAUSE OF ACTION
Intentional and Negligent Infliction of Emotional Distress

68. Plaintiff repeats and realleges each and every allegation contained in the paragraphs above as if set forth herein.

69. By the actions described above, Defendants engaged in extreme and outrageous conduct, which intentionally and/or negligently caused severe emotional distress to Plaintiff. The acts and conduct of the Defendants were the direct and proximate cause of injury and damage to Plaintiff and violated her statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

70. As a result of the foregoing, Plaintiff was deprived of her liberty, suffered specific and serious bodily injury, pain and suffering, humiliation, psychological and emotional injury, costs and expenses, and was otherwise damaged and injured.

FIFTH CAUSE OF ACTION
Violation of the New York State Constitution

71. Plaintiff repeats and realleges each and every allegation contained in the paragraphs above as if fully set forth herein.

72. Plaintiff was further deprived of her right to be free from unreasonable detention and cruel and unusual punishment, in violation of New York State Constitution Article 1 § 5, when she was made to stay in a cell in the 30th Precinct without basic needs.

73. Defendants also deprived Plaintiff of her right to equal protection, in violation of New York State Constitution Article 1 § 11.

74. Plaintiff was further deprived, on more than on occasion during the time she was in custody, of her right to be free from unreasonable searches and seizures, in violation of New York State Constitution Article 1, § 12.

75. Defendants' conduct breached the protections guaranteed to Plaintiff by the New York State Constitution, including but not limited to, Article 1, §§ 1, 6, 8, 9, 11, and 12, and including the following rights: freedom from unreasonable search and seizure of her person and property; freedom from arrest without probable cause; freedom from false imprisonment, that being wrongfully detained without good faith, or legal justification, and of which wrongful detention Plaintiff was aware and did not consent; and freedom from deprivation of liberty without due process of law.

76. As a result of the foregoing, Plaintiff was deprived of her liberty, suffered specific and serious bodily injury, pain and suffering, humiliation, psychological and emotional injury, costs and expenses, and was otherwise damaged and injured.

SIXTH CAUSE OF ACTION

Violations of Administrative Code of the City of New York § 8-801, et. seq.

77. Plaintiff repeats and realleges each and every allegation contained in the paragraphs above as if fully set forth herein.

78. By the actions described above, Defendants violated Plaintiff's right to be secure in her person, papers and effects against unreasonable searches and seizures, and to be secure against the use of excessive force, in violation of Administrative Code of the City of New York § 8-802, and Plaintiff seeks redress under N.Y.C. Admin Code § 8-801, et seq.

79. Defendants, despite knowing that probable cause did not exist to arrest Plaintiff, intentionally, recklessly, and with malice caused Plaintiff to arrested.

80. As a result of the foregoing, Plaintiff was deprived of her liberty, suffered specific and serious bodily injury, pain and suffering, humiliation, psychological and emotional injury, costs and expenses, and was otherwise damaged and injured.

SEVENTH CAUSE OF ACTION

Respondeat Superior Liability of Defendant City of New York for State Law Violations

81. Plaintiff repeats and realleges each and every allegation contained in the paragraphs above as if fully set forth herein.

82. The conduct of Individual Defendants alleged herein, occurred while they were on duty and in uniform, and/or in and during the course and scope of their duties and functions as New York City police officers, and/or while they were acting as agents and employees of Defendant City of New York, clothed with and/or invoking state power and/or authority, and, as a result, Defendant City of New York is liable to Plaintiff pursuant to the state common law doctrine of respondeat superior.

83. As a result of the foregoing, Plaintiff was deprived of her liberty, suffered specific and serious bodily injury, pain and suffering, humiliation, psychological and emotional injury, costs and expenses, and was otherwise damaged and injured.

EIGHTH CAUSE OF ACTION

Negligent Hiring, Screening, Retention, Supervision, and Training

84. Plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

85. Defendant the City of New York negligently hired, screened, retained, supervised, and trained Individual Defendants.

86. The acts and conduct of Defendants were the direct and proximate cause of injury and damage to Plaintiff and violated her statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

87. As a result of the foregoing, Plaintiff was deprived of her liberty, suffered specific and serious bodily injury, pain and suffering, humiliation, psychological and emotional injury, costs and expenses, and was otherwise damaged and injured.

RELIEF REQUESTED

WHEREFORE, Plaintiff demands judgment against the Defendants individually and jointly and prays for relief as follows:

- a. That she be compensated for violation of her constitutional rights, deprivation of liberty, physical injury, pain, suffering, mental and emotional anguish and humiliation;
- b. That she be awarded punitive damages against the Individual Defendants;
- c. That she be compensated for attorneys' fees and the costs and disbursements of this action;
- d. Award attorneys' fees and costs;
- e. Pre- and post-judgment interest; and
- f. Grant such other and further relief as the Court deems just and proper.

Dated: New York, New York
July 27, 2022

BELDOCK LEVINE & HOFFMAN LLP



By:

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